

PETITION - EXPUNGING AN ARREST ON A CITY ORDINANCE CHARGE

IN THE COURT

(The Kansas municipal court where the ordinance charge was brought - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:

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PETITION FOR EXPUNGEMENT OF A CITY ORDINANCE ARREST RECORD UNDER K.S.A.
12-4516A

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under K.S.A. 12-4516a(a); K.S.A. 12-4516a(b); K.S.A. 12-4516a(c); K.S.A. 12-4516a(d); K.S.A. 12-4516a(e); K.S.A. 12-4516a(f); K.S.A. 12-4516a(g); K.S.A. 12-4516a(h); K.S.A. 21-6107; K.S.A. 12-16,134 and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

Any person who has been arrested on a violation of a city ordinance may petition the court to expunge the arrest record. When the petition is filed the court sets a hearing date and causes notice to be given to the prosecuting attorney and the arresting law enforcement agency, and the official court file is separated from other court records and disclosed only to a judge, designated court staff, the prosecuting attorney, the arresting agency or others by court order. A municipal court may prescribe a fee as costs, except that no fee may be charged to a person arrested as a result of being a victim of identity theft. At the hearing the court shall order the arrest record and subsequent court proceedings expunged on finding mistaken identity; that a court found no probable cause for the arrest; that the petitioner was found not guilty; that the arrest was for a violation of an ordinance prohibited by K.S.A. 12-16,134(a) or (b) adopted before July 1, 2014; or that expungement would be in the best interests of justice and charges have been dismissed or no charges have been or are likely to be filed.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself.

[C1 - city and court] Which Kansas city's municipal court handled the charge, and what is the case number if one exists?

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[C2 - full legal name] What is your full legal name?

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[C3 - name used when the arrest happened] What was your full name at the time of the arrest, if different from your name now?

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.....

[C4 - sex race date of birth] What sex, race and date of birth should the petition state?

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[C5 - arrest date] On what date were you arrested?

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.....

[C6 - arresting agency] Which law enforcement agency arrested you?

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.....

[C7 - ordinance charged] Which city ordinance were you arrested for violating?

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[C8 - statutory ground] Which one of these applies to you: the arrest happened because of mistaken identity; a court found there was no probable cause; you were found not guilty; the arrest was for an ordinance prohibited by K.S.A. 12-16,134(a) or (b) adopted before 1 July 2014; or expungement would be in the best interests of justice and charges have been dismissed or none have been or are likely to be filed?

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[C9 - convicted or diverted] Were you convicted, or did you complete a diversion, on this ordinance charge? If so the municipal conviction route applies instead.

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[C10 - identity theft victim] Were you arrested as a result of being a victim of identity theft? If so the municipal court may not charge you a fee.

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[C11 - local form published] Does that municipal court publish its own expungement form or require its own process? Its clerk can tell you.

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[C12 - participant account] If you are relying on the best-interests-of-justice ground, tell us in your own words why expungement matters to you.
(Asked only where the participant selects the best-interests-of-justice ground, because the court then weighs public welfare under K.S.A. 12-4516a(e).)

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D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under K.S.A. 12-4516a(a); K.S.A. 12-4516a(b); K.S.A. 12-4516a(c); K.S.A. 12-4516a(d); K.S.A. 12-4516a(e); K.S.A. 12-4516a(f); K.S.A. 12-4516a(g); K.S.A. 12-4516a(h); K.S.A. 21-6107; K.S.A. 12-16,134.

DATE SIGNATURE OF PETITIONER

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(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

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PROPOSED ORDER - EXPUNGING AN ARREST ON A CITY ORDINANCE CHARGE

IN THE COURT

(The Kansas municipal court where the ordinance charge was brought)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if one was assigned:

.....

PROPOSED ORDER

This matter came before the Court on the petition of the petitioner under K.S.A. 12-4516a(a); K.S.A. 12-4516a(b); K.S.A. 12-4516a(c); K.S.A. 12-4516a(d); K.S.A. 12-4516a(e); K.S.A. 12-4516a(f); K.S.A. 12-4516a(g); K.S.A. 12-4516a(h); K.S.A. 21-6107; K.S.A. 12-16,134. The Court, having considered the petition and anything filed with it,

ORDERS that

(EVERY DECISION ON THIS PAGE IS THE COURT'S. This proposed order travels with the petition for the Court's convenience; nothing on it is completed, decided, signed or dated by the petitioner or by this packet.)

DATED

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(The court signs here if, and only if, it grants the petition.)

FILING INSTRUCTIONS - EXPUNGING AN ARREST ON A CITY ORDINANCE CHARGE

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Petition for Expungement of a City Ordinance Arrest Record under K.S.A. 12-4516a.

Any person who has been arrested on a violation of a city ordinance may petition the court to expunge the arrest record. When the petition is filed the court sets a hearing date and causes notice to be given to the prosecuting attorney and the arresting law enforcement agency, and the official court file is separated from other court records and disclosed only to a judge, designated court staff, the prosecuting attorney, the arresting agency or others by court order. A municipal court may prescribe a fee as costs, except that no fee may be charged to a person arrested as a result of being a victim of identity theft. At the hearing the court shall order the arrest record and subsequent court proceedings expunged on finding mistaken identity; that a court found no probable cause for the arrest; that the petitioner was found not guilty; that the arrest was for a violation of an ordinance prohibited by K.S.A. 12-16,134(a) or (b) adopted before July 1, 2014; or that expungement would be in the best interests of justice and charges have been dismissed or no charges have been or are likely to be filed.

WHERE IT GOES

The Kansas municipal court where the ordinance charge was brought
Filed with the municipal court clerk. On filing, the official court file is separated from other court records and access is limited under K.S.A. 12-4516a(b).
Venue: Statewide statute available in every Kansas municipal court, executed court by court. K.S.A. 12-4516a(a) directs the petition to the court, meaning the municipal court of the city whose ordinance was charged. The mechanism is statewide; the instrument is court-specific.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: A municipal court may prescribe a fee to be charged as costs, K.S.A. 12-4516a(b), except that no fee may be charged to a person who was arrested as a result of being a victim of identity theft under K.S.A. 21-6107 or former K.S.A. 21-4018. Amounts vary by court and there is no statewide figure. Fee waiver as recorded: No discretionary waiver. The relief is the statutory identity-theft exemption, which applies by its own terms.

WHO MUST BE SERVED

Service as recorded: The court causes notice to be given. The participant does not

serve. Notice as recorded: The court sets a date for hearing and causes notice to be given to the prosecuting attorney and the arresting law enforcement agency, K.S.A. 12-4516a(b). Any person who may have relevant information may testify and the court may inquire into the petitioner's background.

WHAT THE RECORD SAYS YOU MUST KNOW

- The packet must state the identity-theft fee exemption: no fee may be charged to a person who was arrested as a result of being a victim of identity theft under K.S.A. 21-6107 or its predecessor, even though the municipal court may otherwise prescribe a fee as costs.
- The packet must say that on filing the petition the official court file is separated from other municipal court records and is disclosed only to a judge, designated court staff, the prosecuting attorney, the arresting agency or others by court order, and that after expungement the records may still be released to a criminal justice agency with a legitimate need.
- Where the best-interests-of-justice ground is used, K.S.A. 12-4516a(e) requires the court to determine whether the records should nonetheless remain available for eight enumerated purposes. The packet must say so.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- The city prosecutor opposes the petition.
- The municipal court sets a contested evidentiary hearing.
- The mistaken-identity or no-probable-cause ground is disputed on the facts.
- The participant was convicted or completed a diversion on the ordinance charge, which puts them on the municipal conviction route instead.
- The municipal court governs expungement by charter ordinance with terms that differ from K.S.A. 12-4516a.
- Immigration consequences are in play.
- Generation is complete when the packet is produced. Self-help stops when the city prosecutor opposes, the municipal court sets a contested evidentiary hearing, or a factual ground is disputed.

THE PAGES IN THIS SET

- ks-12-4516a-municipal-arrest-primary-filing-1: the composed petition, on this route's own statutory ground (Expunging an arrest on a city ordinance charge)
- ks-12-4516a-municipal-arrest-proposed-order-2: the proposed order the court may sign; every decision line is the court's and is left blank (Expunging an arrest on a city ordinance charge)